

Tentative Rulings and Resolution Review Hearings
September 16, 2024
Department 63 (formerly Department 8)

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

Tentative Ruling on Motion for Leave to File Amendment to Complain: Plaintiff Sergio Beltran moves for leave to file an Amended Complaint. There is no separate proof of service filed. There is a proof of service contained within the motion. However, this proof of service indicates that Plaintiff served Defendant M. K. & A., LLC with "Specially Prepared Interrogatories to Defendant M. K. & A., LLC, Set Two." There is therefore not currently a valid proof of service on file. Additionally, there was no Opposition received from Defendant. The motion is **DENIED** without prejudice due to a lack of notice. The Court also notes that Plaintiff did not lodge a copy of the proposed Amended Complaint as required per CRC 3.1324(a)(1). Plaintiff also did not lodge a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order. **No appearance is necessary on today's calendar.**

KENNEDY VS. THOMAS BRENTWOOD, LLC, ET AL.

Case Number: 23CV-0202774

Tentative Ruling on Motions to Compel Discovery Responses: Defendants Thomas Brentwood, LLC and Thomas Concord, LLC move to compel responses to Special and Form Interrogatories, Set One, and Requests for Production, Set One, served by email and US Mail on March 21, 2024. Plaintiff Mary Kennedy has not provided any responses or objections to date. The motions are unopposed.

Merits of Motion: Code of Civil Procedure sections 2030.290 and 2031.300 provide a party may move for an order compelling responses to interrogatories and requests for production, respectively, if no timely response has been received. Sanctions are mandatory absent substantial justification. Unlike a motion to compel further responses, when no responses have been provided, no meet and confer is required. Here, the evidence establishes that Defendant properly propounded the discovery and that no responses have been provided. Defendant is entitled to an order compelling complete responses to the interrogatories and the requests for production without objections.

Sanctions: CCP §§ 2030.290(c) and 2031.300(c) provide for the recovery of monetary sanctions against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or to requests for production, respectively. The Court finds Defendant's hourly rate of \$210 reasonable and finds the three hours spent per motion reasonable. Defendant requests three additional hours in anticipation of reviewing and

responding to oppositions, and of preparing for and appearing at the hearing. No oppositions have been filed, so the Court will reduce the amount to one additional hour for preparing for and appearing at the hearing. The total hours reasonably incurred on these motions is therefore 7 hours. Costs incurred for filing each of the two discovery motions (\$120.00 total) will also be imposed.

Defendant's Motion to Compel Responses to Form Interrogatories, Set One and Special Interrogatories, Set One is **GRANTED**. Plaintiffs' Motion to Compel Responses to Requests for Production, Set One is **GRANTED**. Sanctions in the amount of \$1,590.00 are imposed against Plaintiff pursuant to CCP §§ 2030.290(c) and 2031.300(c). Proposed orders have been lodged and will be modified and executed.

Proposed Tentative Ruling on Motion to Compel Response to Request for Statement of Damages: Defendants Thomas Brentwood, LLC and Thomas Concord, LLC move to compel a response to Defendant's Request for Statement of Damages, served by email on June 14, 2024. Plaintiff Mary Kennedy has not provided a responsive statement to date. The motion is unopposed.

Merits of Motion: Code of Civil Procedure section 425.11(b) provides that in a personal injury action, the defendant may at any time request a statement of damages, which plaintiff shall respond to within 15 days. In the event a response is not served, the defendant, on notice to plaintiff, may petition the court to order plaintiff to serve a responsive statement. Here, the evidence establishes that Defendant requested a statement of damages on June 14, 2024. To date, no responsive statement has been provided. Defendant filed the instant properly noticed motion, and no opposition has been filed. Defendant is entitled to the relief requested.

Sanctions: Defendant requests sanctions but does not provide authority for the imposition of sanctions under CCP § 425.11. Unlike the Civil Discovery Act, which provides for fee shifting in discovery disputes pursuant to CCP §§ 2030.290(c) and 2031.300(c), and other sections, CCP § 425.11 does not provide for sanctions. The Court therefore declines to impose sanctions on this motion.

Defendant's Motion to Compel Response to Request for Statement of Damages is **GRANTED**. No sanctions are imposed. A proposed order has been lodged and will be modified and executed.

IN RE: KLOTZER

Case Number: 24CV-0205186

Tentative Ruling on Petition for Change of Name: Petitioner Gavin Nicholas Doty aka Gavin Nicholas Klotzer seeks to change his name to Gavin Nicholas Klotzer. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

MATLOCK VS. WOLF SCOOTERS, LLC, ET AL.

Case Number: CVPO22-0199209

Tentative Ruling on Motion to Be Relieved as Counsel: Jillian E. Stanley of Quarles & Brady LLP moves to be relieved as counsel for Defendant Bird Rides, Inc. The moving papers do not address the fact that the matter is currently stayed due to the Notice of Stay of the Proceedings which was filed on March 15, 2024. While the Court continues to monitor the case pending the bankruptcy, the Court has not been presented with clear legal authority that would allow the Court to hear such a motion while the matter is stayed due to bankruptcy.

Accordingly, the Court **DECLINES** to issue a ruling on this motion and the matter is dropped from calendar. Counsel may re-notice the motion when and if the stay is lifted. **No appearance is necessary on today's Law & Motion calendar. The Court will call the matter at 9:00 a.m. as it is on calendar for review regarding status of the bankruptcy case.**